

HOUSE No. 2050

The Commonwealth of Massachusetts

PRESENTED BY:

Bud L. Williams

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act removing barriers to the expungement of records.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>1/16/2025</i>

HOUSE No. 2050

By Representative Williams of Springfield, a petition (accompanied by bill, House, No. 2050) of Bud L. Williams relative to certification of eligibility for expungement of certain records. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act removing barriers to the expungement of records.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 276 of the General Laws is hereby amended by striking out section 100I, as
2 appearing in the 2022 Official Edition, and inserting in place thereof the following section:-

3 Section 100I. (a) The commissioner shall certify that a record or records that are the
4 subject of the petition filed pursuant to section 100F, section 100G or section 100H are eligible
5 for expungement provided that:

6 (1) any offense resulting in the record or records that are the subject of the petition is not
7 a criminal offense included in section 100J;

8 (2) all offenses that are the subject of the petition to expunge the record or records
9 occurred before the petitioner's twenty-first birthday;

10 (3) all offenses that are the subject of the petition to expunge the record or records,
11 including any period of incarceration, custody or probation, occurred not less than 7 years before

the date on which the petition was filed if the record or records that are the subject of the petition include a felony, and not less than 3 years before the date on which the petition was filed if the record or records that are the subject of the petition only include a misdemeanor or misdemeanors;

(4) other than motor vehicle offenses in which the penalty does not exceed a fine of \$50 and the record or records that are the subject of the petition to expunge, the petitioner does not have any other criminal court convictions or juvenile court convictions on file with the commissioner; provided, however, multiple offenses arising out of the same incident shall be considered a single offense for the purposes of this section;

(5) other than motor vehicle offenses in which the penalty does not exceed a fine of \$50, the petitioner does not have any criminal court convictions or juvenile court convictions on file in any other state, United States possession or in a court of federal jurisdiction; and

(6) the petition includes a certification by the petitioner that, to the petitioner's knowledge, the petitioner is not currently the subject of an active criminal investigation by any criminal justice agency.

Any violation of section 7 of chapter 209A or section 9 of chapter 258E shall be treated as a felony for purposes of this section.